

Pavitra W/O Anil Raj vs Anil Raj S/O Late Hanumantharaya on 7 February, 2023

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CP No. 200052 of 2022

IN THE HIGH COURT OF KARNATAKA, KALABURAGI BENCH

DATED THIS THE 7TH DAY OF FEBRUARY, 2023

BEFORE

THE HON'BLE MR JUSTICE C.M. POONACHA

CIVIL PETITION NO. 200052 OF 2022

BETWEEN:

1. PAVITRA W/O ANIL RAJ
D/O PAGUNTAPPA,
AGED ABOUT 24 YEARS,
OCC. HOUSE WIFE,
R/O HOUSE NO. 1-6-88/51,
IB COLONY,
SRI RAMLINGESHWARA LAYOUT,
RAICHUR-584101,
RAICHUR TALUK AND DISTRICT.

...PETITIONER

(BY SRI. K RAVINDRA., ADVOCATE)

Digitally signed AND:

by RAMESH

MATHAPATI

Location: High

Court of

Karnataka

1. ANIL RAJ S/O LATE HANUMANTHARAYA
AGED ABOUT 34 YEARS,

OCC. DOCTOR, R/O. BY PASS ROAD,
HIREJANTHAKAL, GANGAVATHI-583227,
GANGAVATHI TALUK,
KOPPAL DISTRICT,
(SRI GAJANANA CHILDRENS HOSPITAL,
BUS STAND ROAD, MANJUNATH COMPLEX,
GANGAVATHI, DIST. KOPPAL.

...RESPONDENT

(BY SRI. MAHANTES PATIL, ADVOCATE)

THIS CP IS FILED U/S. 24 OF THE CPC, PRAYING TO TRANSFER THE CASE IN M.C. NO.44/2020 PENDING ON THE FILE OF SENIOR CIVIL JUDGE AND JMFC, GANGAVATHI TO FAMILY COURT, RAICHUR IN THE INTEREST OF JUSTICE AND EQUITY.

THIS PETITION, COMING ON FOR ADMISSION, THIS DAY, THE COURT MADE THE FOLLOWING:

ORDER

Heard the learned counsel for the petitioner and the learned counsel for the respondent.

2. The petitioner-wife has filed the present petition under Section 24 of the Code of Civil Procedure (for short 'CPC') seeking for transfer of M.C.No.44/2020, which is pending on the file of the Senior Civil Judge and JMFC at Gangavathi to the Family Court at Raichur.

3. The essential facts are undisputed, i.e., the marriage between the parties was solemnized on 19.04.2018 at Raichur as per the Hindu rights and customs and that the parties lived together in the matrimonial home at Gangavathi.

4. It is forthcoming from the record that the petitioner-wife went to her parents' house in July, 2018 since she was expecting a child. On 02.02.2019, a child was born to the parties. After the birth of their child, the parties never resided together in their matrimonial home. As a result of acrimony between the parties, various civil and criminal proceedings have been initiated by both the parties.

5. The respondent-husband has filed M.C.No.44/2020 in the Court of Senior Civil Judge at Gangavathi under Section 13(1) and (ia)(ib) of the Hindu Marriage Act, 1955, seeking for a decree of divorce to declare that the marriage between the parties dated 19.04.2018 be dissolved. The petitioner-wife has entered appearance in the said proceedings. Subsequently, the present petition is filed.

6. The respondent-husband has entered appearance and statement of objections have been filed, opposing the relief sought for in the present petition.

7. The learned counsel appearing for the Petitioner Sri K. Ravindra in support of the contentions putforth in the above petition submits that the petitioner was residing at Raichur in the address shown in the cause title at the time of filing the present petition and hence, sought for transfer of M.C.No.44/2020 to the Family Court at Raichur. That the petitioner-wife is presently staying at the ancestral home of the respondent-husband at Sirwar, pursuant to the order passed in this regard in Crl.Misc.No.820/2022, which are the proceedings initiated by the petitioner under the provisions of

the Domestic Violence Act. Learned counsel also submits that the petitioner is ready to contest the proceedings in M.C.No.44/2020 either at Raichur or at any other place mutually convenient for the parties.

8. The learned counsel Sri Mahantesh Patil appearing for the respondent vehemently opposes grant of relief sought for in the above petition and referring to the statement of objections, submits that various criminal cases are pending between the parties and as a result of the same, there is a severe strain in the matrimonial relationship between the parties.

9. It is forthcoming from the statement of objections that following criminal cases are pending:

(i) Crime No.10/2020 pending before Gangavathi Police Station, which is initiated by the respondent-

husband;

(ii) Crime No.87/2020 pending in Gangavathi Police Station, initiated by the mother of the respondent;

(iii) M.C.No.44/2020 filed for divorce by the respondent-husband before the Senior Civil Judge and JMFC, Koppal (transfer of the said proceedings are sought for in the present petition);

(iv) Crime No.120/2021 filed by the petitioner-wife before the Gangavathi Police Station under Section 498A of the Indian Penal Code, 1860;

(v) Complaint has been lodged by the petitioner-wife in HRC No.2014/10/17/2021 before the Deputy Superintendent of Police, Karnataka State Human Rights Commission, Bengaluru;

(vi) Crime No.370/2021 pending before the Gangavathi Rural Police Station, initiated by the respondent-husband;

(vii) Crl.Misc.No.820/2022 filed by the petitioner-wife under Section 12 of the Domestic Violence Act;

(viii) Crime No.139/2022 filed by the respondent/husband pending before Sirwar Police Station (learned counsel for the respondent submits that a 'B' report has been filed in respect of the said complaint);

(ix) Crime Nos.180/2022 and 188/2022 have been filed by the petitioner-wife before Sirwar Police Station.

10. Learned counsel for the respondent further submits that the respondent/husband is a Pediatrician and he is running a children hospital near Gangavathi and it will be difficult for him to travel to any other place to prosecute the proceedings since there are inpatients in the hospital. In

support of the submissions, he relies on a judgment of a co-ordinate bench of this Court in the case of Smt.H.K Suma Vs. M Santhosh, in CP No.367/2021 dated 13.09.2022.

11. I have considered the submissions of both the learned counsel in detail and perused the material available on record. The question that arises for my consideration is;

"Whether the proceedings in M.C.No.44/2020 are required to be transferred? If so, to which Court?"

12. The essential facts regarding the marriage of and relationship between the parties are undisputed. It is also forthcoming that as a result of the matrimonial relationship there is a lot of acrimony between the parties resulting in various disputes, both civil and criminal pending between them.

13. It is also submitted by the learned counsel for the respondent that the brothers of family members of the petitioner have assaulted the respondent-husband and he has apprehension regarding his safety if he is required to travel to a different place for the purpose of prosecuting the petition in M.C.No.44/2020. In response to the said submission the learned counsel for the petitioner, while disputing the same, without prejudice, would undertake on behalf of the Petitioner that, neither the brothers of the petitioner nor any of her family members would, in any manner, cause any harm to the respondent or to prevent him from prosecuting or defending any of the legal proceedings.

14. It is clear from the submission of both the learned counsel and the material on record that the parties are at serious logger-heads with regard to various aspects and proceedings regarding the same pending in various Courts.

15. During the hearing of the matter, an attempt was made by this Court to ascertain a mutually convenient place where the parties could participate in M.C.No.44/2020. In respect of the same, submission was made by the learned counsel for the petitioner that the petitioner is open to travel to Manvi which is about 30 to 45 Kms from Raichur. He further submits that Sirwar is about 25 Kms away from Raichur and the petitioner would be required to travel from Sirwar to Manvi which is nearly 65 Kms. The learned counsel for respondent submits that the respondent is practicing at Gangavathi and Sindhanur which is situated at about 42 Kms from Gangavathi would be convenient for the respondent to travel and prosecute the proceedings and that the said place i.e. Sirwar would also be convenient to the petitioner. It is also submitted that Manvi is at a distance of 95 Kms from Gangavathi. The learned counsel for the petitioner would submit that it

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would be inconvenient for the petitioner to travel to Sindhanur as it would entail traveling for a further distance away from Manvi. Learned counsel for the petitioner further submits that petitioner is required to look after their three year old son and it would be difficult for the petitioner to travel for a longer distance. However, the learned counsel for the respondent submits that the respondent

is agreeable to bear the expenses of the travel of the petitioner as well as another person accompanying the petitioner for the purpose of prosecuting the matrimonial proceedings.

16. In view of the aforementioned, this Court upon considering all the relevant facts and circumstances of the case is of the opinion that the proceedings in M.C.No.44/2020 is required to be transferred from the Court of the Senior Civil Judge and JMFC Gangavathi. In deciding the place to which the said proceedings are required to be transferred, in view of the fact that the relief sought for in the present petition regarding transfer

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of proceedings to the Family Court at Raichur, would not be feasible having regard to the various litigations between the parties.

17. The reliance placed by the learned counsel for the petitioner in the case of Smt.H.K.Suma (supra) would not aid the case of the petitioner in as much as in the said case, the petitioner sought for transfer of proceedings from the Family Court at Bengaluru to the Family Court at Doddaballapur. It was noticed that the petitioner was working at Chikkaballapur and hence this Court, in the said case, in view of the fact that the distance between the Doddaballapur to Bengaluru was commutable, refused to transfer the proceedings.

18. It is a settled proposition of law that while transferring the proceedings, after noticing sufficient cause, convenience of the parties is another aspect which has to be adjudicated. While appreciating the convenience of both the parties, the convenience of the wife is required to be given precedence.

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19. Considering the inconvenience that may be caused to the parties, a fact that is to be kept in mind is that their 3 year old child is in the care and custody of the petitioner which she is required to take care of while participating in the various proceedings. Whereas the respondent being a professional doctor, he is also required to take care of his professional commitments and certain adjustments in that regard are required to be done.

20. In the present transfer proceedings, it not appropriate to pass any order/s regarding payment of expenses by the respondent to the petitioner since, the aspect regarding quantum of expenses would become another bone of contention between the parties. Hence, the said aspect is left to be decided in appropriate proceedings between the parties.

21. The undertaking given by the learned counsel for the petitioner that neither the brothers of the petitioner nor the family members would in any manner cause any harm to the respondent or prevent him from participating

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in the legal proceedings is placed on record and it shall be open to the respondent to initiate appropriate proceedings including moving this Court in the event of violation of the said undertaking.

22. In view of the aforementioned, it is expedient that proceedings in M.C.No.44/2020 be transferred from the Senior Civil Judge and JMFC, Gangavathi to the Court of the Senior Civil Judge, at Manvi with certain terms.

23. In view of the above, I proceed to pass the following;

ORDER

(a) The petition is allowed in part.

(b) The proceedings in M.C.No.44/2020 pending on the file of the Senior Civil Judge and JMFC, Gangavathi, shall stand transferred to the Court of the Senior Civil Judge at Manvi.

(c) Both the parties shall appear before the Senior Civil Judge, at Manvi on 24.02.2023 at 11.00 a.m.

(d) The transferee Court, upon appearance of the parties shall conduct further proceedings in accordance with law.

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(e) Both the parties shall co-operate with the transferee Court in expeditious disposal of the proceedings and shall not unnecessarily seek for adjournments.

(f) The Transferee Court shall dispose of the proceedings as expeditiously as possible, in any event, not later than ten months.

(g) All the contentions of the parties are kept open.

Sd/-

JUDGE SRT/MSR